

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Yu	Team: Squad #8	CCRB Case #: 202101472	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 02/23/2021 12:30 AM	Location of Incident: West 152nd Street and 7th Avenue	Precinct: 32	18 Mo. SOL 8/23/2022	EO SOL 8/23/2022	
Date/Time CV Reported Wed, 02/24/2021 7:20 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/08/2021 11:07 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Ramon Reyes	03998	947395	PBMN SU
2. POM Steven Moran	02932	947275	PBMN SU
3. POM Wilfredo Burgos	13254	953710	034 PCT
4. POM Jose Tavaréz	02044	949716	PBMN SU

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Taiyuen Lee	00000	948233	PBMN SU
2. POM Anthony Presto	04236	954244	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Ramon Reyes	Force: Sergeant Ramon Reyes used physical force against § 87(2)(b)	
B.SGT Ramon Reyes	Force: Sergeant Ramon Reyes used physical force against § 87(2)(b)	
C.POM Steven Moran	Force: Police Officer Steven Moran used physical force against § 87(2)(b)	
D.POM Steven Moran	Force: Police Officer Steven Moran used physical force against § 87(2)(b)	
E.POM Steven Moran	Force: Police Officer Steven Moran struck § 87(2)(b) with a vehicle.	
F.POM Steven Moran	Force: Police Officer Steven Moran struck § 87(2)(b) with a vehicle.	
G.POM Steven Moran	Force: Police Officer Steven Moran used physical force against § 87(2)(b)	
H.POM Wilfredo Burgos	Force: Police Officer Wilfredo Burgos used physical force against § 87(2)(b)	
I.POM Jose Tavaréz	Discourtesy: Police Officer Jose Tavaréz spoke discourteously to § 87(2)(b)	
J.POM Jose Tavaréz	Abuse: Police Officer Jose Tavaréz threatened to arrest § 87(2)(b)	

Case Summary

On February 24, 2021, Sgt. Ramon Reyes of Patrol Borough Manhattan North called IAB to report that § 87(2)(b) complained of injuries while in police custody. The CCRB received the IAB log (21-5239) on March 8, 2021. The IAB log did not contain § 87(2)(b)'s contact information. On March 9, 2021, the CCRB received IAB log number 21-5257, filed by another victim in the incident, § 87(2)(b). Aside from § 87(2)(b)'s address and email, there was no additional contact information included in the IAB log.

A search of the Booking Arraignment Disposition System (BADs) yielded § 87(2)(b)'s address and no phone number. A CLEAR search yielded two possible phone numbers for § 87(2)(b) and five possible phone numbers for § 87(2)(b). On March 10, 2021, a call was made to § 87(2)(b) on the five possible phone numbers obtained from CLEAR, two of the phone numbers were the wrong number, a voicemail message was left on one phone number, and the other two phone numbers were non-working phone numbers. On the same day, a call was made to the § 87(2)(b) on the two possible phone number obtained from CLEAR; one phone number was not in service and the other phone number was not receiving calls. Between March 15, 2021, and May 11, 2021, five additional calls were made to § 87(2)(b) at one of the phone numbers obtained from CLEAR and an automated prompt stated that the phone number was not receiving calls.

On March 11, 2021, the undersigned called IAB and obtained a phone number for § 87(2)(b) but no additional contact information for § 87(2)(b). Between March 11, 2021 and April 9, 2021, five calls were made to § 87(2)(b) on the phone number obtained from IAB and there was no answer or voicemail prompt.

On March 15, 2021, § 87(2)(b) called the undersigned and confirmed his contact information. During the call, § 87(2)(b) stated that he would speak with his attorney before speaking to the undersigned. Between March 22, 2021, and April 9, 2021, § 87(2)(b) was called six times; during the initial call, § 87(2)(b) stated that he would call the undersigned back and during the five subsequent calls, an automated prompt stated that the called was not receiving calls.

Between March 9, 2021, and April 16, 2021, three emails were sent to § 87(2)(b) at the email address obtained from the IAB log.

On May 11, 2021, a check of the NYC and NYS Department of Correction websites indicated that neither § 87(2)(b) nor § 87(2)(b) were incarcerated during the investigation.

§ 87(2)(g)

Squad No.: 8

Investigator: Patrick Yu
Signature

SI Patrick Yu
Print Title & Name

05/11/2021
Date

Squad Leader: Ethan De Angelo
Signature

IM Ethan De Angelo
Print Title & Name

5/11/2021
Date

Reviewer:

Signature

Print Title & Name

Date